

Court No. - 3

Case :- WRIT - C No. - 6107 of 2022

Petitioner :- Nasreen Begum

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rakesh Kumar Yadav, Muktesh Kumar Singh

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasiya

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Deepak Verma, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari to quash the impugned demand notice/recovery order dated 18.09.2021 (Annexure-4 to this writ petition) issued/passed by the respondent no.3 Executive Engineer, Electricity Supply Division-1, Dakshinanchal Vidyut Vitran Nigam Ltd. Etawah."

Sri Madan Mohan Chaurasiya, learned counsel for the respondent No.3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 30.5.2022

SKD